

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201503861	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/12/2015 7:20 PM	Location of Incident: Hoyt and Schemerhorn Subway Station - A/C line	18 Mo. SOL 11/12/2016	Precinct: 84		
Date/Time CV Reported Wed, 05/13/2015 5:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 05/14/2015 2:05 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Schwaner	13910	943797	TB DT30

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Dennis	16919	946622	TB DT30
2. POM Jefrin Decastro	02169	938327	TB DT30

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Schwaner	Abuse: PO Jonathan Schwaner refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . POM Jonathan Schwaner	Discourtesy: PO Jonathan Schwaner spoke rudely to § 87(2)(b)	B . Unsubstantiated

Case Summary

On May 13, 2015, § 87(2)(b) filed this complaint in-person at the Transit District 30 stationhouse.

On May 12, 2015, at approximately 7:20 p.m., § 87(2)(b) entered the Hoyt-Schermerhorn subway station in Brooklyn after getting off work. Holding his skateboard in his hand, he walked to the turnstile, paid his fare, and then started walking towards the staircase to the Queens-bound A Train. A police officer in plainclothes, PO Jonathan Schwaner, stopped § 87(2)(b) and showed him his shield. PO Schwaner asked § 87(2)(b) for his ID, and § 87(2)(b) responded by asking PO Schwaner for his ID. PO Schwaner asked § 87(2)(b) for his name, and § 87(2)(b) responded by asking PO Schwaner for his name. PO Schwaner responded by asking § 87(2)(b) for his ID again, and did not ever provide § 87(2)(b) with his name (**Allegation A**). PO John Dennis and PO Jefrin De Castro walked over and stood behind PO Schwaner at this time. § 87(2)(b) removed his wallet to retrieve his ID, and PO Schwaner grabbed § 87(2)(b)'s hands and attempted to place him in handcuffs. § 87(2)(b) gripped his wallet with both hands, and refused to let go while PO Schwaner tried to place him in handcuffs. During this struggle, PO Schwaner stated, "I'm tired of this shit" (**Allegation B**). § 87(2)(b) was eventually placed in handcuffs and then brought to the Transit District 30 stationhouse, where he was charged with § 87(2)(b).

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation, due to § 87(2)(b)'s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)]
- A notice of claim request was submitted to the Comptroller's office on June 26, 2015. It will be added to the case file upon its receipt.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Schwaner has been a member of service for eight years. There are no substantiated allegations on his record, § 87(2)(g).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A: Abuse of Authority – PO Jonathan Schwaner refused to provide his name to

§ 87(2)(b)

§ 87(2)(b) alleged that, upon being stopped and asked for his name by PO Schwaner, § 87(2)(b) responded by asking PO Schwaner what his name was. PO Schwaner did not give his name, however, and instead asked § 87(2)(b) for his ID.

PO Schwaner stated that § 87(2)(b) asked for his name, and he provided it (03 Board Review). Thus, even though neither PO Dennis nor PO De Castro could recall § 87(2)(b) asking PO Schwaner for his name (04 Board Review and 05 Board Review, respectively), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Discourtesy – PO Jonathan Schwaner spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that, while PO Schwaner struggled to place § 87(2)(b) in handcuffs, he stated, “I’m tired of this shit.” PO Schwaner denied that he made that statement, or used any profanity towards § 87(2)(b) and neither PO Dennis nor PO De Castro could recall if PO Schwaner made the alleged statement, or if he used any profanity.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date